

SENATE BILL 743

By Yager

AN ACT to amend Tennessee Code Annotated, Title 68,
Chapter 221, Part 9, relative to the Water and
Wastewater Operator Certification Act.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 68-221-906(7), is amended by deleting the subdivision and substituting instead:

(7) Prepare, conduct, and grade examinations in accordance with § 68-221-916;

SECTION 2. Tennessee Code Annotated, Title 68, Chapter 221, Part 9, is amended by adding the following as a new section:

68-221-916.

(a) Examinations prepared and administered by the board must:

(1) Demonstrate that an operator has the necessary skills, knowledge, ability, and judgment, as appropriate, for the specified operator classification of the certification program pursuant to § 68-221-907;

(2) Consist of the same questions for all applicants; and

(3) Include a minimum of ten percent (10%) of the total questions for each classification on state regulatory questions germane to the specific operator classification.

(b) To receive a certificate, applicants must:

(1) Correctly answer seventy percent (70%) or more of:

(A) The total questions on an examination; and

(B) The state regulatory questions described in subdivision (a)(3);

and

(2) Otherwise meet the requirements of this part.

(c) The board shall not collect data pertaining to, or otherwise use, an applicant's age, race, sex, or cultural background.

(d) The board shall not delegate, by contract or other agreement, to a third-party its authority under this part to determine minimum operator competency or to prepare, conduct, or grade examinations.

(e) The board may utilize staff under its direct supervision to prepare, conduct, and grade examinations and to otherwise implement this part.

SECTION 3. If any provision of this act or its application to any person or circumstance is held invalid, then the invalidity does not affect other provisions or applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it, and applies to contracts and agreements entered into, amended, or renewed on or after such date.